

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

August 9, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne and Mr. Valdez. Absent: Mr. Spiker. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 26, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on August 2, 2010. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry, City Treasurer Barb Dorr and Mayor Kaysen provided information available concerning a voucher payable to B&B Sewer Service (\$180.00), pump out of grease trap at Shadows Restaurant, Depot Building, and City Engineer Doug Vetter reviewed a voucher payable to Knife River, (\$55.51), washed rock landscape material at Harmony Meadows for City drainage repair. Motion carried. Voting “yes” – all members of the governing body present.

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from P Public District to HR-2 High Density-Residential Developing District for Fincher Block, a replat of Lots 1-8, Block 193, and vacated 16-foot alley contained within said Block 193, Original City, Cheyenne, Wyoming (located between Bradley and Morrie Avenues, and E. 22nd and 23rd Streets).” Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present. (#3902)

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne city map of the Cheyenne City Code, by changing the zoning classification from P-Public, MR-1-Medium Residential Established and LI-Light Industrial Districts to LI-Light Industrial District for BOPU Subdivision, a replat of portions of Blocks 98, 99, and 151; all of Blocks 149 and 150; and vacated streets and alleyways, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Snyder Avenue and W. 24th Street).” Ms. Ash moved to approve on third and final reading, seconded by Mr. Collins. Motion

carried. Voting “yes” – all members of the governing body present. (#3903)

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from P Public District to MUR Mixed Use-With Residential Emphasis District for Garey Addition, 2nd Filing, a replat of a portion of Lot 2 and all of Lots 3 and 4, Garey Addition, Cheyenne, Wyoming (located north of and adjacent to W. Fox Farm Road, West of Walterscheid Boulevard).” Ms. Ash moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present. (#3904)

[CA] “A Resolution authorizing the Mayor to sign a memorandum of understanding with Laramie County to apply for the Edward Byrne Memorial Justice Assistance Grant Program.” Motion (per Consent Agenda) carried. (#5227 RES/#5581 CON)

[CA] “A Resolution approving the submittal of an application to the Wyoming Water Development Commission for funding for the Southern Water Transmission Main - Phase II project and authorizing the director of the Board of Public Utilities to execute the application and all related documents.” Motion (per Consent Agenda) carried. (#5228)

[CA] “A Resolution approving a user water and sewer services agreement between the Board of Public Utilities and the University Corporation for Atmospheric Research (UCAR).” Motion (per Consent Agenda) carried. (#5229)

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Fincher Block, a replat of Lots 1 thru 8, Block 193, and vacated 16-foot alley contained within said Block 193, Original City, Cheyenne, Wyoming (located between Bradley and Morrie Avenues, and E. 22nd and 23rd Streets).” Motion (per Consent Agenda) carried. (#5230)

“A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for BOPU Subdivision, a replat of portions of Blocks 98, 99, and 151; all of Blocks 149 and 150; and vacated streets and alleyways, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Snyder Avenue and W. 24th Street).” Ms. Ash moved to adopt with staff recommendations #3 through 7, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present. (#5231)

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Garey Addition, 2nd Filing, a replat of a portion of Lot 2 and all of Lots 3 and 4, Garey Addition, Cheyenne, Wyoming (located north of and adjacent to W. Fox Farm Road, west of Walterscheid Boulevard).” Motion (per Consent Agenda) carried. (#5232)

[CA] “A Resolution authorizing the Mayor and the City Clerk of the City of Cheyenne to execute a memorandum of understanding for the trade of real property owned by the City of Cheyenne to Laramie County School District No. 1, described as two parcels of land which comprised the former Civitan Park, the north half of the right-of-way of Civitan Place, a platted, but unbuilt, street and the right-of-way of a platted, but unbuilt, alley, all of which are located in Arp Addition, 5th filing, generally located south of West Leisher Road between Cribbon and Dey Avenues, together consisting of approximately 45,519 square feet, (estimated value of \$80,000.00) in exchange for real property owned by Laramie County School District No. 1, described as a strip of land approximately 126 ft. in width and approximately 398 ft. in length, consisting of approximately 50,148 square feet (estimated value of \$80,000.00), situated in the eastern part of the Sunrise

Elementary School site within Lot 1, Block 1, Sun Valley School addition, Cheyenne, WY, generally located on the north side of east 12th Street, adjacent to Sun Valley Park.” Motion (per Consent Agenda) carried. (#5233)

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to install storm sewer on Snyder Avenue, between Pershing Blvd. and Randall Avenue” -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction account grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the Cox Parking Garage induction lighting retrofit project” -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction account grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for an early warning system for Cheyenne’s drinking water” -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] “A Resolution prioritizing the City of Cheyenne’s three applications to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for Mineral Royalty Capital Construction account (Chapter 3) funds” -- referred to Finance Committee (sponsor - Ms. Broyles).

Contract between the City of Cheyenne and Laramie County School District No.1 for school resource officers for the 2010-2011 school year. Reporting for Finance Committee, Mr. Brown moved to approve, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute, seconded by Mr. Pierson. It was noted the substitute revises the contract payment amount and, upon inquiry, Police Chief Brian Kozak confirmed payment for services is for duration of the school year only. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#5579)

[CA] Contract between the City of Cheyenne Public Works Sanitation Division and Waste Management Disposal Services of Colorado, Inc. to accept permitted solid waste at the Weld landfill, Ault, CO (Solid Waste fund). Motion (per Consent Agenda) carried. (#5580)

[CA] Contract between the City of Cheyenne Police Department Victim Witness Program and the State of Wyoming Division of Victim Services for services to victims of crime -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne Police Department and Tina Henderson for crime victim assistance services -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne Police Department and Brenda Johnson for crime victim assistance services -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne Police Department and Leslie Burch for crime victim assistance services -- referred to Finance Committee.

[CA] Contract Modification #3 to Contract #5477 between the City of Cheyenne and Recco, Inc. d/b/a Five-R Co. to substitute 277 volt heaters with 208 volt heaters to accommodate existing electrical system at the City Transfer Station (State Land and Investment Board funds) -- referred to Finance Committee.

[CA] Amendment Number One to Cooperative Agreement #5512 between the City of Cheyenne and Wyoming Department of Transportation for Cheyenne Marginal-Vandehei Interchange (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of #Bid R-2-11 for furnishing one new Motor Grader for the City of Cheyenne Street & Alley Division from Honnen Equipment, Casper, WY. Motion (per Consent Agenda) carried.

Appointment of Donald Threewit to the Historic Preservation Board. Mr. Collins moved to approve, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Announcement was made of the appointment of Lorna Sanders to the Housing & Community Development Advisory Council, to be confirmed August 23, 2010.

Under other City business:

Steven Martinez stated he had recently reapplied for a Body Artist business permit and requested information regarding the review status of the application. Police Chief Brian Kozak advised he had completed his review and his recommendation would be to approve. Upon request by Mr. Martinez as to whether there was any way to "fast track" the remaining application review process, Mayor Kaysen and City Clerk Carol Intlekofer provided information on the application processing procedure once Chief Kozak's written recommendation has been received in the City Clerk's office.

Pachomio Sandoval requested information regarding placement of political and other types of signs in the public right-of-way. Lisa Pafford, Building and Development Office, advised political and other signs must be located on private property, not in the public right-of-way, and that set back distances vary throughout the City depending on property lines, and street width and area dedicated to the public. Comment was made on enforcement measures involving signs in the public right-of-way.

It was noted a fund raiser (Mad Hatter Tea Party) open to the public will be held Sunday afternoon, August 15, 2010 at the Paul Smith Children's Village.

Appreciation was expressed to the Police Department for its graffiti removal program and it was noted that donations are being accepted to assist with program expenses.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:22 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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